# HMH India Employee Guide

## Welcome to HMH!

The goal of HMH Technology Private Limited (the "Company") is to create a great place to work and opportunities for professional and personal growth for individuals who perform well and conduct themselves in a manner consistent with our values. To that end, we strive to maintain a work environment that encourages our employees to maximize their contributions to the Company's business goals and rewards them for achieving and exceeding those goals.

All employees are required to read, understand, and comply with all provisions of this HMH India Employee Guide ("Employee Guide").

- The policies in this Employee Guide are reviewed annually and will be effective upon approval and adoption by the Company's senior management.
- This is not intended to be, nor should it be considered to be, inclusive of every rule, regulation, policy or procedure. In addition to the policies referred to in this Employee Guide, employees are also bound by the terms of their Employment Agreement.
- No employee guide can anticipate every circumstance or question about a specific policy. As the Company continues to grow, the need may arise and the Company reserves the right, to revise, supplement, or rescind any policies, programs, plans and/or portions of the Employee Guide as it deems appropriate, in its sole and absolute discretion. These alterations may occur without advance notice. Communication of any changes will be done through normal business communication channels.
- This Employee Guide, including any updates, whether distributed electronically or as a hardcopy version, is Company property.
- This Employee Guide is designed to be a working guide for employees, to ensure consistency of behaviour and fairness of policy administration.
- Additional procedures relating to these policies may exist that are not set out in this Employee Guide.
- If you have any questions about any of the guidelines contained in this Guide, please contact your manager or the Human Resources department for clarification.

  This Employee Guide is applicable to all Company employees located in any location India.

  So, let's dive in!

This Employee Guide below contains our current guidelines on some key areas related to your employment with the Company:

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**Code of Conduct**

1. The Company operates in accordance with the HMH Global Code of Conduct ("Code"). The Code addresses legal and ethical standards you must understand and comply with as an employee of the Company. A copy of the Code is available to view by clicking here. Employees will be required to complete training related to the Code of Conduct and ethical business behaviour. Questions about the Code of Conduct may be directed to Human Resources or to the HMH Compliance Officer (HMHComplianceOffice@hmhco.com ).

2. The Code, which you are required to review, contains a more in-depth explanation of the Company's policy in this area.

**Employee Relations**

3. If employees have any concerns about the workplace, we encourage them to communicate their concerns to their supervisor or Human Resources. The Company does not undertake to agree with the concerns raised, however the same will be carefully considered in good faith by the Company.

**Employee's Duties and Responsibilities**

4. In accepting the Company's offer of employment, employees are representing to the Company that they can efficiently, competently and properly carry out their duties and that they have all the skills and experience to do so.

5. Employees are required to obey all reasonable, lawful directions given to them by the Company in the course of their employment, and they must carry out their duties and responsibilities to the satisfaction of the Company.

**Diversity and Inclusion**

6. Our continued success requires that the Company serve more people in more languages and countries than ever before. Our customers increasingly demand products and services that are relevant to their informational needs and respectful of their cultures. To meet these needs, we must ensure that we are sensitive to — and accepting of — the diverse nature of our customers around the world.

7. We believe that one way of meeting our customers' needs is through diversity in the workplace. We must ensure that our culture, attitude, and systems align with these changes.

8. We want to develop and encourage the potential contributions that all our people bring to the Company. In order to do this, we must first recognize the value of the broad and rich variety of experiences, ideas, and skills our colleagues offer the business.

9. We believe that there is an ongoing business benefit to our customers, employees, and communities when the Company is not only free of discrimination but also inclusive with a diverse workplace.

**Equal Employment Opportunity**

10. The Company's equal opportunity policy ("EO Policy") (available here) reinforces the commitment of the Company to promote organizational diversity and to ensure equality of opportunity for its employees. We respect all personnel and are against discrimination of any

kind, in any manner, based on sex, race, colour, caste, religion, ethnicity, disabilities, gender identity, sexual orientation, gender expression, or any other form of discrimination, whether barred by law or otherwise. At the Company, we continuously strive to ensure that all our facilities and privileges are accessible to people with disabilities and transgender persons.

**Prevention of Sexual Harassment**

11. The Company believes in equal employment opportunity and that sexual harassment as a form of misconduct undermines the safety and dignity of all persons. We do not tolerate verbal or physical conduct that creates an intimidating, offensive, or hostile environment for our Associates (as defined below). Harassment of any kind, including sexual harassment, is forbidden in this Company, and every Associate has the right to be protected against it.

12. The Company has a detailed policy for the prevention of sexual-harassment at the workplace, which is available here.

**HIV and Aids**

13. The Company has a culture where employees are treated with fairness and respect. We acknowledge differences among employees as advantages that strengthen the Company's performance, and we strive to maintain a positive work environment that is free from unlawful discrimination or harassment. In this regard, the Company is committed to compliance with all applicable laws mandating provision of equal employment opportunities.

14. The Company has a policy on protection of persons affected by the human immunodeficiency virus ("HIV") and acquired immune deficiency syndrome ("AIDS"), at the workplace which is available here.

**Employee Information and Records**

**Background Check Process**

15. The Company is committed to providing a safe and secure working environment for its employees, vendors and customers. All offers of employment by the Company are contingent upon completion of background checks to the satisfaction of the Company. Background checks will be conducted for candidates who have accepted an offer.

Background checks will include the following:

- Identity Verification: To validate the applicant's Aadhaar, PAN, date of birth, and former addresses.
- Court Record Database Check: To validate criminal records for an individual from multiple sources.
- Prior Employment Verification: To verify applicant's employment with the listed companies, including dates of employment, position held, and additional information available pertaining to performance rating, reason for departure, and eligibility for rehire. This verification will be run on the past two employers or the previous seven years, whichever [involves a longer period].
- Educational Verification: To verify applicant's claimed educational qualifications, including the institution, years attended, and the degree/diploma received.
- Address Check

- Global Regulatory, Compliance and Debarment Database Verification

**Procedure**

16. Human Resources will initiate the background check on receipt of required authorization and an employment screening service will conduct the checks. The Company will be permitted to update these background checks from time to time during the course of the employee's employment with the Company.

17. Human Resources will notify the hiring manager regarding the results of the check. In instances where negative or incomplete information is obtained, Human Resources along with the Talent Acquisition representative will assess the potential risks and liabilities related to the job's requirements and determine whether the individual should be hired or if the employment will be continued.

18. All background check information will be kept confidential. Background check information will be maintained in a file separate from employees' personnel files for a minimum of seven years. The Company complies with all applicable central, state, and local laws regarding background checks.

**Employees on Probation**

19. The probation period for each employee of the Company shall be in accordance with the relevant employee's Employment Agreement.

**Personnel Records and Personal Information**

20. The Company maintains confidential personnel and other records concerning each of its employees. These records are the property of the Company. The Company may provide data from and copies of personnel and other records to third parties in response to a valid request by a local, state, or central government agency (including law enforcement agencies), or in cases deemed an emergency by the Company. Requisite confidential records of employees may also be provided to hiring managers of the Company to take an informed decision on the candidature of the employee.

21. It is your responsibility and important to both you and the Company that you keep your personal information current and accurate with the Company.

22. Employees must report changes in important information such as, but not limited to, home address and/or phone numbers, name, emergency contact information, and marital status (to the extent the employee's dependents intend to participate in any insurance benefit offered by the Company) to the Company by using Employee Central.

23. Any such changes, such as marriage, divorce, birth or adoption of a child, etc., must be reported within 30 days for dependent benefit coverage.

24. Documentation may be required to be submitted to Human Resources at the time of notification. Failure to provide the above information may result in incorrect paycheck deductions, delays in insurance coverage, and other outcomes that could adversely affect you.

25. In some cases, the Company employs or works with affiliates, subsidiaries, consultants, temporary workers, software developers, outsourcers, or other third parties to complete a business process or provide a service, and we may provide them with access to employee personal information. From time to time, employee personal information may be transferred to

a country different from where Company employees are located and stored and processed there. You hereby consent to such transfers, storing, and processing.

**Engagement with External Parties**

26. Employees must exercise caution in their interaction with all third parties and ensure that compliance with Company policy is maintained, to the extent applicable, in all their interactions. A few critical aspects to note are:

    - **Anti-Bribery**: The Company has a zero-tolerance policy for any behaviour that violates applicable laws against money laundering, bribery, and all types of corruption. All payments made to third parties must be compliant with the accounting standards and should be made only through bank transfer and never through cash. The Company's zero-tolerance policy on unethical behaviour extends to the act of fraud.

    - **Diligence**: It is important to be extremely careful while dealing with or undertaking transactions with third parties. All third parties, with no exception, shall be subjected to a detailed operational, business, and reputational due diligence check prior to being engaged by the Company.

    - **Disclosures**: Employees shall exercise the utmost caution and integrity in their interactions with government officials and public servants. If they have worked as an official in the government/judiciary or have a family member who is an official or has worked as an official in the government/judiciary, they should disclose the same to the Company in writing.

    - **Gifts**: Giving and receiving gifts in the form of cash, cash equivalents (such as gift certificates or vouchers) or gifts in kind are strictly forbidden. Gifts should neither be accepted nor given and in the event of receipt of gifts above this value the same should be immediately reported.

**Work Schedules, Attendance, and Absences**

**Flex-Time**

27. The Company allows flex-time work schedules to assist employees in balancing work/life demands. Due to the nature of the work and/or interdependencies, not all positions, locations, or functional teams will be eligible for flex-time work schedules. Our top priority is meeting customer and business needs, and thus the approval of any flex-time work schedule will be contingent on those needs being met and subject to management discretion, and may be altered or discontinued at any time.

**How Flex-Time Works:**

28. With managerial approval, employees may vary their regular start time and their regular end time, working a full workday (9:00 a.m. to 6:00 p.m.) with rest and/or meal breaks in accordance with local laws and regulations. To ensure efficient operations and cross-departmental collaboration, all full-time employees are expected to work during the core hours of 10:00 a.m. to 4:00 p.m. local time. All flex-time schedules require manager approval in advance to ensure that our customer and business needs are met.

29. Managers will periodically review flex-time schedules to ensure such needs are met. Flex-time schedules may be discontinued at the manager's discretion.

30. Once a flex-time schedule has been approved, the schedule must be adhered to on a regular basis until a change is approved by the manager.

31. Part-time employees (i.e., those working less than a full-time schedule) should confer with their managers to determine if flex-time is possible for their position.

**Attendance**

32. Punctuality and regular attendance are essential in all positions with the Company. Employees are expected to consistently work their standard hours and approved schedule. Your manager/ supervisor and your department colleagues should know your whereabouts and how to reach you during all work hours. Excessive tardiness and/or absenteeism will result in corrective action, up to and including termination of employment. Please advise your manager/supervisor if you know in advance that you are going to be late for work. When unforeseen events cause you to be late, try to reach your manager/supervisor within the first half-hour of your workday. If that is not possible, contact your manager/supervisor as soon as you can to explain the situation.

33. Each day you are absent (other than when on approved, earned, or other leave), you must contact your manager/supervisor and apply the leave in the system.

34. The Company will comply with applicable laws relating to time off from work, but it is your responsibility to provide sufficient information to enable the Company to make a determination as to the nature of your absence. Please also refer to the Company's Leave and Work Hours policy available here.

**Remote Work Arrangements**

35. Employees should reach out to their supervisor/manager if they have an interest in working remotely. It is the Company's policy to allow remote-work arrangements at the discretion of the employee's management. Remote-work requests will be considered on a case-by-case basis and evaluated by an employee's supervisor/manager and the department leader. The evaluation will be based on the nature of the role and individual employee performance.

**Use of Company Property**

36. All items and equipment furnished to employees by the Company are considered the property of the Company and should be used and returned in accordance with the guidelines below. These items include, but are not limited to computers, telephones, hand-held communication devices, printers, projectors, employee ID badges, credit cards, desks/cabinets/lockers, and vehicles. Documents and other materials created by an employee for business purposes and/or on Company equipment are also considered Company property. Similarly, all information transmitted to or from and/or stored on any Company equipment or network is considered Company property.

37. Corporate credit cards should be used solely for legitimate business expenses. More details related to Company policies on Corporate credit card usage may be obtained on the Company intranet here.

38. A violation of the Company's travel policy, including but not limited to use of a corporate credit card for personal expenses, will result in disciplinary action, up to and including termination of employment.

39. Company-provided vehicles are to be used primarily for business purposes and only for personal

usage that falls within the guidelines established by the Corporate Procurement Department.

40. The Company's Information Security Policy and addendums thereto, which are available on the Company's intranet, describe the Company's expectations of employees with respect to the use of information and information technology. While certain portions of that policy have been included below for guidance, the Information Security Policy contains more detailed and comprehensive information than is included below, and as such governs employees with respect to their use of Company computers and communications systems.

**Privacy, Search, and Surveillance**

41. In order to protect the Company's assets and ensure compliance with the Company's Information Security Policy, the Company has systems in place to allow monitoring of all electronic communications into and out of the Company and communication using the Company's property or infrastructure. Any and all telephone conversations or transmissions, electronic mail or transmissions, or internet access or usage by an employee by any electronic device or system, including but not limited to the use of a computer, telephone, wire, radio, or electromagnetic, photoelectronic, or photo-optical system may be subject to monitoring at any and all times and by any lawful means. At any time and without prior notice, the Company reserves the right to examine such electronic communications, including but not limited to email messages, instant messages, voicemail messages, text messages, files on computers, web browser cache files and bookmarks, and other information stored on or passing through Company computers and communications systems.

42. Such monitoring and examination are also done in accordance with applicable laws to support operational, maintenance, auditing, security, and investigative activities and for other business-related purposes.

43. Any messages and data sent from, received by, or stored in or upon the Company's computers and communications systems are the sole property of the Company, regardless of the form and/or content of these messages and data. Consequently, employees have no expectation of privacy in their use of Company property, including the Company's computers and communication systems. Employees acknowledge and agree that messages and data sent from, received by, or stored in or upon the Company's computers and communications systems are not deemed to be private and undertake not to send, receive, or store sensitive personal or private information using these systems.

44. Additionally, consistent with applicable law, the Company may search or conduct surveillance of employees, their possessions, and Company-issued equipment at any time while on Company-owned or -controlled property (including parking lots), or while conducting Company business. Such a search may include, but is not limited to, persons, purses, briefcases, lunch containers, vehicles, lockers, desks, computers, and file cabinets. Your continued employment constitutes consent to such searches.

**Acceptable Use Policy**

45. The Company strives to enable its employees to excel and innovate. The Company accomplishes this by providing employees with productivity-enhancing technology tools including but not limited to laptop/desktop, tablets, telephones (both stationary and mobile), internet access, email, and instant messaging (IM) capabilities ("Productivity Tools"). While these tools can be

used to add value to the Company and increase productivity, they also have a relatively high potential for abuse.

46. Abuse of these tools can create an uncomfortable workplace for fellow employees, lead to diminished productivity, harm the Company's reputation, and expose the Company to potential civil or legal liabilities.

47. Productivity Tools are intended for Company business purposes. Reasonable, personal use of Productivity Tools may be permitted at the discretion of management as long as it does not jeopardize work deliverables, diminish productivity, result in incremental costs to the Company, negatively impact the reputation of the Company, or place the Company at increased risk of civil or legal liability.

48. The Company's Productivity Tools should be used within the following guidelines, which identify certain unacceptable uses of Productivity Tools that are expressly prohibited:

    - Company-provided Productivity Tools must not be used for any illegal or unethical purpose. They also must not be used for transmitting, retrieving, or storing any data or communications of an obscene, discriminatory, or harassing nature, or in any other way that violates Company policy. For example, Productivity Tools must not be used to create, store, or transmit offensive or disruptive messages, such as messages that contain profanity or other offensive language, sexual implications, racial or ethnic slurs, gender slurs, or any other comment that offensively addresses a person's age, sexual orientation, religious or political beliefs, national origin, disability, or other characteristics protected by local, state, and federal laws, or messages that interfere with the productivity or privacy of other employees. The Company retains the sole right to determine whether or not employees are using these methods of communication properly.

    - Electronic communications sent via the Company-owned property or infrastructure must not represent the Company in an irresponsible manner or put the Company in a negative light, as determined by the Company, consistent with applicable law.

    - Productivity Tools must not be used to copy, distribute, or forward copyrighted materials, Company trademarks, customer data, trade secrets, proprietary or confidential information, or other similarly classified materials except as explicitly permitted by the owner of such materials or after consulting the Company's legal department.

    - Company property must not be used to read or 'hack' into other systems or to breach any computer or network security measures. Employees must not probe security mechanisms on Company-owned or -affiliated networks or systems, and are prohibited from downloading, storing, or using tools used to conduct such activities on Company resources. If such tools are required as part of your job function, approval for their use and/or storage must be obtained from the Chief Information Security Officer prior to their storage or use.

    - Employees must not circumvent security mechanisms on Company systems or networks. If a security mechanism is preventing or is suspected to be preventing an employee from conducting a part of their job function, the problem should be reported to the Service Desk so that it may be properly investigated and a solution may be provided. Company-provided Productivity Tools must not be used to

communicate under a false or concealed identity.

- Unsolicited email or IM for marketing or promotional purposes shall not be mass distributed (>100 recipients) outside the Company without the formal written approval of the legal department unless the intended recipients are entities with whom Company has a previously established business relationship that have been provided with an "opt out" opportunity and chosen not to exercise this option.

- Company provided email addresses must not to be used as personal contact information in news groups, web sites, mailing lists, and other public locations where the content may be considered objectionable or inappropriate.

- Personal email accounts should not be used to conduct Company business.

- Peer-to-Peer ("P2P") applications shall not be installed or used on Company equipment or the Company network unless the application is necessary for business purposes. Installation and use of such applications must be approved by the Director of Information Security. Please consult the Company's Information Security Policy for a comprehensive list of P2P applications that are explicitly prohibited from being downloaded onto any Company property. P2P and public IM applications shall not be used as tools for file transfers due to the elevated risks associated with these tools. Employees must not use Company property for unauthorized charitable endeavours or private business activities.

- Employees must not use unauthorized services that provide remote access services or similarly allow connectivity into Company networks. All remote access to Company systems or networks must be done through Company-approved methods.

- Employees must not automatically forward their email to an outside email service.

- If an employee discloses, or discusses any aspect of, their employment with the Company on any private blog, social networking site, or other internet posting, the employee must identify themselves individually and post a disclaimer that any opinions expressed are their own and not those of the Company. Employees should refer to the Company's Social Media Policy for guidelines about participating in social media for personal and/or business-related purposes.

- In certain cases, the Company may sanction blogging or posting comments on social networking or other websites on the Company's behalf. All such representations on behalf of the Company must be approved by Corporate Affairs. Unless specifically authorized to do so, employees must not purport to represent the Company.

49. This list of guidelines and prohibited activities is not exhaustive, and employees are accountable for inappropriate (determined in the Company's sole discretion) or illegal activity not specifically referred to above. These guidelines and prohibitions will be strictly enforced. Violations of these guidelines and prohibitions will lead to corrective action, up to and including termination of employment.

**Return of Company Property**

50. All Company property must be returned to the Company if you leave its employ or transfer to a position that no longer warrants that such equipment be in your possession. This includes but is

not limited to keys, access cards, computers, peripheral computer equipment, data storage devices, mobile phones, tablets, hand-held communication devices, credit cards, and vehicles. Employees must return such Company property on or before their last day of employment or last day in the prior position.

51. The Company shall not be responsible to any former employee for any personal data left by them on a Company computer that they had access to during the course of their employment.

52. If you have any questions regarding the return of Company-issued equipment or property, you should contact the IT Department or Human Resources prior to your last day of employment.

**Non-Employees**

53. Persons who are not employees of the Company are not permitted on the Company's premises or in its facilities or offices to solicit or to distribute articles or printed matter to the Company's employees and visitors, or to post printed matter anywhere on the Company's premises.

**Employees**

54. The solicitation and distribution of non-Company-sponsored literature is prohibited in working areas and during work time. Because distraction on the job may lead to uncomfortable and/or unsafe working conditions, and/or negatively impact performance, we have established the following rules:

    - Solicitation of co-workers is prohibited during the working time either of the speaker or the person being addressed. Working time is when employees are engaged in or required to be performing work tasks. Working time does not include during breaks, or non-working time before or after the employee's assigned shift.

    - Literature that is non-Company-sponsored may not be distributed in the work areas of the Company at any time.

    - Employees may distribute Company-approved materials during approved breaks and in non-working areas.

    - The Company's email and other electronic communications systems are not to be used for personal solicitations, soliciting or proselytizing for commercial, religious, or political causes, or for other outside organizations.

    - Employees will have access to bulletin boards for the limited purpose of posting materials offering items for sale or rent by the employee.

    - Employees may not post any other type of materials on such bulletin boards, including offerings on behalf of persons not employed by the Company, charities not sponsored by the Company, and materials related to any outside organization.

**Exceptions**

55. The foregoing rules do not apply to solicitation or distribution of materials arranged and/or

sponsored by the Company in connection with its business. With respect to any such authorized solicitations or distributions, an employee alone may decide whether or not they wish to contribute or participate.

**Safety and Hazards**

56. It is the responsibility of all employees to maintain a healthy and safe work environment. Employees must report all safety hazards and occupational illnesses or injuries to their manager or department leader as soon as reasonably possible and complete a statement or injury report as needed.

**Work Environment and Behaviours**

57. Certain standards regarding employee behaviour are necessary for the efficient operation of the Company and for the benefit and protection of the rights, health, and safety of all employees. All employees are expected to use common sense and to conduct themselves in a professional manner. Examples of expected conduct are:

    - Treating all customers, visitors, and colleagues with courtesy and respect.
    - Reporting to/for work as scheduled.
    - Complying with all Company safety and health regulations.
    - Performing assigned duties efficiently and in a timely manner.
    - Refraining from behaviour or conduct that may be offensive to others.
    - Complying with Company policies and the Code of Conduct.

58. Conduct that interferes with operations, creates safety hazards, brings discredit to the Company, or is offensive or distracting to business associates (i.e., fellow employees, customers, visitors and/or other business contacts) will not be tolerated.

59. When employees fail to conduct themselves appropriately, the Company will take disciplinary action it deems appropriate under the circumstances. The Company recognizes that different circumstances will warrant varying degrees of discipline, including termination of the employee's services.

60. For illustrative purposes only, the following are types of misconduct that may be grounds for disciplinary action, including immediate termination of employment:

    - Insubordination: the refusal by an employee to follow a supervisor's or manager's reasonable instructions concerning a job-related matter
    - Threats or threatening behaviour
    - Physical or verbal assault

- Unauthorized possession, destruction, or misuse of Company property or the property of a co-worker, customer, visitor, or any other business associate

- Gambling on Company-owned or -controlled property or while conducting Company business.

- Dishonesty, including but not limited to falsifying any Company record or report, such as an application for employment, a production record, a time record, an identification card, or shipping or receiving records

- Unauthorized or unlawful possession or use or being under the influence of alcohol, illegal drugs, or other intoxicants on Company-owned or -controlled property or while conducting Company business

- Possession or use of a weapon on Company-owned or -controlled property or while conducting Company business

- Discrimination of any kind on the grounds of religion, sex, gender identity, sexual orientation, disability, race, caste, descent, place of birth and/or residence, familial status, military or veteran status, or citizenship status

- Except for certain violations not involving moral turpitude or as otherwise determined by the Company, violation of any law while on Company-owned or -controlled property or while conducting Company business

61. The foregoing examples are illustrative of the types of behaviour that will not be permitted. The list is not intended to include all forms of conduct that are inappropriate or that may result in immediate termination of employment. Any questions about employee conduct should be directed to your manager or Human Resources.

62. Additionally, conduct that violates our Code of Conduct is prohibited. The Code of Conduct, which contains a more in-depth explanation of the Company's policies and expected conduct, is available here. You are required to familiarize yourself with the contents of this document. You may also obtain a hard copy of the Code of Conduct by printing it at the link above or contacting Human Resources.

**Smoke-Free Workplace**

63. Smoking, including vaping, e-cigarettes or any other electronic nicotine-delivery device that simulates the use of tobacco, is prohibited on Company premises except in designated smoking areas. An employee found violating this policy or abusing this privilege will be subject to disciplinary action, up to and including termination of employment.

**Drug and Alcohol-Free Workplace**

64. It is our policy to provide a workplace free of illegal drugs and alcohol, as the use or possession of such can pose a threat to safety and productivity.

65. Therefore, an employee's use, possession, sale, manufacture, dispensation, distribution, or

purchase of illegal drugs (including narcotics, inhalants, and all other controlled substances unless pursuant to a current, valid prescription issued by a medical professional) while on the job or on Company property is prohibited.

66. In addition, the possession or consumption of alcohol while conducting Company business is prohibited. An employee who violates this policy is subject to disciplinary action, up to and including the immediate termination of employment.

67. An employee will not be permitted to work when it appears that they are under the influence of drugs or alcohol. If physician-directed use of drugs impairs or is likely to impair an employee's job performance, the employee should contact their manager to discuss the appropriate handling of the situation.

68. When there is reasonable cause to believe that an employee may be impaired during working time as the result of alcohol or drug use, the Company may require the employee to submit to drug and/or alcohol testing. Refusal by an employee to complete this testing as directed may result in disciplinary action, up to and including termination of employment.

69. Human Resources will provide a complete statement of the Company policy and procedures for the administration of a substance-screening test.

70. In the event of a Company function where alcohol is served, employees attending are expected to conduct themselves in an appropriate and professional manner with regard to alcohol consumption.

71. An employee must, as a condition of employment, notify the Company of any conviction under a criminal statute for drug-related violations occurring on Company premises or off Company premises while conducting Company business.

72. Report of a conviction must be made within five days after the conviction. If an employee violates this policy and is not terminated, the employee must satisfactorily complete a Company-approved drug-abuse assistance or rehabilitation program and may be required to satisfactorily complete such a program prior to returning to work.

73. Employees needing help in dealing with drug or alcohol use are encouraged to contact the Company's confidential Employee Assistance Program ("EAP"). For further information regarding the program, contact Human Resources. Please note that an employee's use of the EAP will not protect them from being disciplined for violations of the conduct standards in this policy.

**Weapons-Free Workplace**

74. The Company provides a "weapons-free" workplace and concealed and/or dangerous weapons are not allowed on Company property by anyone. This policy applies to all Company locations and wherever an employee may be conducting Company business. Examples of prohibited weapons include but are not limited to firearms, explosives, knives (except those provided by the Company for work), swords, and other weapons or objects that might be considered dangerous by the Company.

75. Employees are encouraged to report any suspicious or unsafe behaviour to their manager or Human Resources immediately for investigation.

76. Any employee who violates this policy is subject to disciplinary action, up to and including termination of employment.

**Workplace Violence Prevention**

**Summary**

77. It is the Company's policy to provide a safe, violence-free workplace for all employees. In this regard, the Company strictly prohibits anyone from behaving in a violent or threatening manner. This zero-tolerance policy applies to employees and non-employees, including consultants, customers, vendors, visitors, or anyone else on Company premises or engaging in a Company-related activity.

78. The Company prohibits anyone from behaving in a violent or threatening manner. Such prohibited conduct includes, but is not limited to, the following incidents:

    - Making threats of any kind.
    - Engaging in threatening behaviour, physical aggression or violent behaviour, stalking, or any other behaviour that reasonably creates fear or intimidates others.
    - Engaging in abusive or belligerent speech.
    - Defacing Company property or causing physical damage to the facilities or to the property of any person or organization that is affiliated with the Company.
    - Intentionally or recklessly causing physical injury to another person.
    - Sending emails, text messages, voice messages, or other communications that are threatening or intimidating.

**Reporting Procedure**

79. If any employee observes or becomes aware of violent or threatening conduct by another employee or a customer, consultant, visitor, or anyone else, the employee should immediately notify one or more of the following:

    - The employee's manager
    - The employee's manager's manager
    - Site security/facilities
    - Human Resources

80. Further, employees should notify one of the above persons if they know of any restraining order that is in effect and that specifies a Company facility or Company property, or if they know of a potentially violent non-work related situation that could result in violence in the workplace. Employees are encouraged to meet with Human Resources to discuss issues concerning or related to workplace violence.

81. All reports of violent or threatening conduct will be promptly investigated by the Human Resources, Security, and/or Legal departments. Also, the Company will take immediate action

where it determines that such immediate action is warranted. If reports are submitted anonymously, the investigation may be restricted by the amount and clarity of the information provided. The Company will maintain the confidentiality of the reporting employee and of the investigation to the extent possible. However, investigations may include interviewing the individual alleged to have engaged in such inappropriate conduct as well as any witnesses. No employee will be subject to reprisal or retaliation for having filed a good-faith complaint of workplace violence or for co-operating in the investigation of a complaint. However, the Company also recognizes that false accusations of conduct prohibited by this policy could be damaging to an accused employee and disruptive to the Company's operations. Consequently, the Company will not tolerate false accusations of or about prohibited conduct made maliciously, recklessly, or in bad faith.

**Dangerous/Emergency Situations**

In the event of an emergency situation, use the following emergency contact list:

Emergency Response System number: 108/112

Disaster Management Control Room: 1077

Police: 100

Ambulance: 108

Fire Brigade: 104

Additionally, please contact Security/Facilities or Human Resources.

**Corrective Action and Discipline**

82. If the Company determines that workplace violence has occurred, the Company will take appropriate corrective action and will discipline the offending employee. The appropriate discipline will depend upon the particular facts and circumstances relating to that situation, and discipline may include verbal or written warnings, probation, suspension, reassignment of responsibilities, or termination. If the violent behaviour is that of a non- employee, the Company will take appropriate action in an attempt to ensure that such behaviour is not repeated. Under certain circumstances, the Company may request that an employee participate in counselling or evaluation by a third party, either voluntarily or as a condition of continued employment. If appropriate, the offending person will be reported to the relevant governmental authorities for prosecution.

**Employee Assistance Program**

83. Any employee who believes that they may have a problem that could lead to violent behaviour is encouraged to use the Company's Employee Assistance Program ("EAP") or reach out to Human Resources. The EAP is a professional, confidential counselling service that is available to all employees and their dependents in resolving emotional difficulties, marital and family conflict, stress, chemical dependency, conflicts at work, and other concerns. EAP services are prepaid by

the Company. An employee may request counselling services by contacting Human Resources. Please note that an employee's use of the EAP will not protect them from being disciplined for violating the conduct standards in this policy.

**Personal Relationships in the Workplace**

84. The Company does not strictly prohibit the employment of relatives, and it does not wish to become involved in consensual relationships between co-workers. However, precautions must be taken to ensure that individuals are not and do not appear to be improperly influenced by the existence of close personal relationships.

85. Employees should not directly supervise or otherwise participate in decisions regarding the hiring, retention, promotion, or compensation of other employees with whom they have a close personal relationship. The Company construes "close personal relationships" as including those relationships between immediate family members, spouses, domestic partners, fiancés, significant others, or any other relationships that reasonably might be perceived as potentially compromising either employee's ability to make independent, unbiased decisions on behalf of the Company. In addition, employees in close personal relationships should not work in the same department, section, or work group without the express written consent of a Senior Executive in the employees' work group, the Centre Head, and Human Resources.

86. If employees who work in the same department, group, or section are or become involved in a close personal relationship, they must disclose that relationship to Human Resources and the most senior executives in the group or division in which the employees work. Upon such disclosure, the Company may take appropriate action to avoid potential conflicts. These steps may include, but are not limited to, requiring one of the employees to transfer to another department or division or, in extreme cases and as the last resort, to resign from employment with the Company. Such decisions shall be made by the Centre Head and Human Resources after considering key business needs, seniority, job functions, employee preferences, and other factors deemed relevant by the Company.

**Performance Management**

87. Performance management is an ongoing, interactive process between an employee and their manager. Through the use of informal reviews, discussions, development opportunities, and other feedback methods, continuous skill and performance improvements are encouraged.

88. In addition, the Company's annual performance management process is designed to provide formal, written feedback to an employee from their manager regarding performance in the cycle year. The performance management cycle year is January through December. Self-reviews generally are conducted in November, and managerial reviews generally are completed in December. In January and February, managers and employees meet to review the prior year's evaluation and set future goals and objectives. Where an employee's performance is deemed to warrant a merit increase in compensation, the employee's manager will make a recommendation to Executive Management regarding the amount of the increase. Merit increase amounts and effective dates will be based on the budget for the year in question.

    The performance management process includes:

    1. A discussion between an employee and their manager at the beginning of each planning cycle to set and agree to goals, measurements, and weighting.
    2. A mid-point check-in discussion between an employee and their manager to

evaluate progress and determine if modification to goals is needed.

3. Goal assessment by an employee and their manager at the end of the cycle.
4. Competency assessment at the end of the cycle to evaluate an employee's success in behavioural areas, such as customer focus, driving results, collaboration, and learning nimbly, as well as technical areas as they relate to that employee's specific job role.
5. Calculation of the employee's overall rating as a combination of the individual goals and competency ratings.
6. Lastly, discussion of a development plan between an employee and their manager to identify strengths and/or development needs and the timing of related action items.

89. A rating scale will be used by managers to evaluate employee performance as well as additional inputs collected through observation and 360 feedback:

- Role Model Performance: This rating is reserved for employees who serve as role models for their teams, setting the standard for how to effectively exhibit behaviours associated with each Company core value as outlined in Our Stand. These employees regularly and substantially exceed overall expectations. The individual has typically achieved extraordinary results that have readily demonstrable benefits extending beyond their own team to other departments, divisions, and/or the Company overall.

- Excelling Performance: The employee's performance regularly exceeds the expected outputs for the role. The employee demonstrates a desire and ability to excel in performance and consistently demonstrates most of the behaviours associated with our core values in an exemplary way. The individual has typically achieved results that have readily demonstrable benefits to their broader team, department, and/or division.

- Successful Performance: A rating at this level indicates that the employee is a competent, productive, and valued member of the team. They consistently meet expectations within any specified time and budget, understand and support departmental goals and priorities, and demonstrate many of the behaviours associated with our core values.

- Developing Performance: Employees at this level are likely successful in many aspects of their work, but may have some development opportunities in a few important areas. The employee has demonstrated a willingness and ability to improve performance. When performance falls within this level, the employee and manager should create a development plan to address areas of opportunity.

- Unsuccessful Performance: Employees at this level clearly and consistently fail to meet many of their most significant job expectations. The employee shows either unwillingness or an inability to improve, despite attempts to support change. When performance is at this level, corrective action or performance improvement planning has likely already been taken.

90. In the event an employee is on leave of absence when performance reviews are conducted, the review and any subsequent salary adjustment will be delayed until the employee's return to work and shall be conducted as soon as practical after they return.

91. Employees hired during the months of October, November, and December will not participate in

the performance management cycle until the following year. For example, if a new hire starts November 15, the first formal review will be the following year and will be conducted in the January following one full calendar year of employment.

**Performance Coaching and Counselling**

92. The Company strives to address employee performance or conduct issues in a fair and equitable manner. Where the Company believes that coaching, counselling and/or additional training will assist an employee in correcting performance, conduct, or a behavioural issue, we will work with the employee to provide notice of the concern and an opportunity to improve. It is within the Company's sole discretion to determine whether a form of counselling or corrective action, including demotion or termination, is appropriate in any particular case. The Company will take into consideration all relevant factors including the employee's past work history and the severity of the current problem.

93. For example, where the issue is a performance problem that the Company believes can be addressed with coaching and assistance from the Company, the manager may meet with the employee to discuss the specific concerns or issues, outline areas for improvement, and provide expectations and action items to meet expectations where appropriate. Good communication between the employee and manager is critical to maximizing the chance for success. Employees must seek clarification whenever they are unclear about concerns or expectations and request any support they need in order to meet the stated expectations.

**The Performance Improvement Plan (PIP)**

94. The Performance Improvement Plan (PIP) will be used to address performance problems that are identified among employees. The PIP communicates the performance deficiencies, when an improved level of performance is to be achieved, and the action steps that will assist the employee in meeting performance expectations. For further details, please refer to the PIP process (link).

**Payroll Information**

**Salary Day**

95. The Company shall pay employees their salary on the last working day of each month.

96. Employees are encouraged to review their payslip for accuracy. In case of any discrepancy, report it to Human Resources immediately.

**Deductions**

97. The Company is required by law to make certain deductions from each employee's salary. This includes income taxes, provident fund contributions, and any other deductions required under law or by court order for wage garnishments. The amount of your tax deductions will depend on your earnings and tax declarations submitted by you. You may also authorize voluntary deductions from your pay, including contributions for insurance premiums, retirement plans, meal vouchers, or other services. Your deductions will be in your tax summary statement.

98. If you have any questions about deductions from your salary, contact the payroll team. You will be reimbursed in full for any isolated, inadvertent, or improper deductions, as defined by law. If an error is found, there will be an adjustment, which will be paid no later than your next salary.

**Leave Policy**

99. The Company has formulated a leave and work-hours policy that is available here.

**Medical Benefits**

The Company provides a competitive range of benefits to all its full-time Employees:

- Group Health/Medical Insurance
- Group Personal Accident and Life Insurance
- Annual Health Check-Up

For details of all the benefits, please refer to the benefits guide.

**Retirement Benefits**

**Provident Fund:**

100. Subject to the Company having a minimum number of full-time Employees as required under the Employees' Provident Funds and Miscellaneous Provisions Act, 1952, the Company shall contribute to the Employees' Provident Fund and Pension Fund in accordance with provisions of the Employees' Provident Funds and Miscellaneous Provisions Act, 1952 (as amended and re-enacted from time to time).

**Gratuity**:

101. Subject to the requirements prescribed under law, gratuity shall be paid to all eligible Employees in accordance with provisions of the Payment of Gratuity Act, 1972 (as amended and re-enacted from time to time).

**Resignation Process**

102. The Company requests written notice of an employee's intent to resign. Notice, per your employment agreement, should be given to your immediate supervisor/manager and Human Resources. During the notice period, the immediate manager will transition duties as necessary and provide an opportunity for the employee to complete an exit interview with Human Resources. See below for more information on the exit interview.

103. If you wish to terminate your employment [after the Probation Period], you may do so by providing the Company two months prior written notice. In the event you request to be relieved from services with the Company at an earlier date, the Company may relieve you earlier solely at its discretion. Upon your serving notice of resignation, the Company shall be entitled to unilaterally relieve you earlier. Employees must return all Company property no later than their last day of employment. Information about when and where to return Company property is available from your immediate manager and/or Human Resources.

104. The Company will pay each employee all accrued and unused annual leave on completion of Full & Final settlement.

105. More information on the resignation process can be found here.

**Exit Interviews**

106. The Company is committed to providing a positive work environment, and we value each employee's input on policies and practices that will aid in this effort. While we continuously gather current employee ideas and suggestions, we especially want to know employees' input as they depart from the Company to seek feedback about their experience with the Company and any improvements we can make.

107. These conversations will also give employees an opportunity to provide their opinions and share their thoughts about their decision to depart from the organization.

**Disciplinary Action and Enquiry Procedures**

108. In the event of non-compliance with any of the terms and conditions contained in the respective employment agreement executed with an employee or this Employee Guide, the Company may initiate disciplinary action in accordance with various procedures and principles of natural justice.

**Enquiry Procedure:**

1. Upon identifying the problem, the Company shall notify the relevant employee.
2. The Company shall begin discussion of the problem and investigation of the cause.
3. Formal or informal counselling in the form of a private meeting/interview may be conducted if deemed appropriate by the Company.
4. A fair hearing and proper consideration of reasons or excuses provided by the employee shall be given.
5. A period for review shall be set.
6. The outcome of the enquiry shall be documented.
7. During the review period (if any), the concerned person shall be monitored and given time to demonstrate improvement, in line with the review period and standards set at the counselling meeting.
8. Nothing contained above shall restrict the rights of the Company under the terms of the relevant employment agreement.

**Rights of the Concerned Employee**:

All persons have the right to have the principles of natural justice and procedural fairness observed:

1. The employee who is the subject of concern must be informed of all the allegations in relation to his behaviour.
2. The employee will be provided with an opportunity to present his case.
3. All concerned parties have the right to be heard.
4. All relevant submissions and evidence will be taken into consideration.
5. Irrelevant matters will not be taken into consideration.
6. The decision-maker must be just, fair, and impartial.
7. All investigations and proceedings shall be conducted in a just, fair, and unbiased manner.
8. The employee shall not face undue delay in conducting investigations and proceedings.

On the basis of the nature and seriousness of the misconduct, the Company may choose to do the following as appropriate:

- Employee counselling
- Verbal warning
- Warning letter
- Second and final warning letter
- Termination/dismissal

**Acknowledgment of Receipt and Review**

109. By signing below, I acknowledge that I have received a copy of the Employee Guide and that I have read it, understand it, and agree to comply with it.

110. I understand that the Company has the maximum discretion permitted by law to interpret, administer, change, modify, or delete the rules, regulations, procedures, and benefits contained in this guide at any time without notice.

111. No statement or representation by a manager or any employee, whether oral or written, can supplement or modify this Employee Guide.

112. Changes to my employment agreement can only be made if approved in writing by Human Resources. I also understand that any delay or failure by the Company to enforce any rule, regulation, or procedure contained in the Employee Guide does not constitute a waiver on behalf of the Company or affect the right of the Company to enforce such rule, regulation, or procedure in the future.

113. This Employee Guide supersedes any previous Employee Guide or policy statements, whether written or oral, issued by the Company.

114. If I have any questions about the content or interpretation of this Employee Guide, I will contact Human Resources.

_____

Date

_____

Signature

_____

Print Name